

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4077

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Department of
Emergency Management; making an appropriation to the
Emergency Relief and Impacts Revolving Fund;
identifying source; establishing amounts; providing
purposes; requiring and limiting the utilization of
funds; authorizing certain memorandums of
understanding; limiting scope; prohibiting certain
memoranda terms; authorizing and limiting the
promulgation of rules and utilization of procedures;
requiring certain reports and submissions to certain
entities; requiring appearance before certain joint
committee; limiting duration of certain requirements;
providing determination process; providing for
noncodification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Emergency Relief and Impacts
Revolving Fund established in Section 683.24B of Title 63 of the

1 Oklahoma Statutes, from any monies not otherwise appropriated from
2 the Statewide Recovery Fund created pursuant to Section 255 of Title
3 62 of the Oklahoma Statutes, the sum of Ten Million Five Hundred
4 Eighty-two Thousand Five Hundred Ninety-six Dollars (\$10,582,596.00)
5 or so much thereof as may be necessary to administer the Emergency
6 Relief and Impacts Grant Program. Such funds shall be utilized in a
7 manner consistent with the recommendations adopted by the Joint
8 Committee on Pandemic Relief Funding on April 15, 2026.

9 SECTION 2. NEW LAW A new section of law not to be
10 codified in the Oklahoma Statutes reads as follows:

11 The Oklahoma Department of Emergency Management may enter into
12 memorandums of understanding with other agencies of the State of
13 Oklahoma for the auditing, documentation, evaluation,
14 implementation, oversight, reporting, and management of funds and
15 associated efforts related to the appropriations made in this act;
16 provided, that no such memorandum of understanding shall require or
17 include, as an option or condition, the direct or practical transfer
18 or relinquishment of control by the agency appropriated such funds
19 to budget, expend, allocate, and request the distribution of the
20 funds appropriated by this act.

21 SECTION 3. NEW LAW A new section of law not to be
22 codified in the Oklahoma Statutes reads as follows:

23 The Oklahoma Department of Emergency Management may promulgate
24 rules, utilize existing rules, establish procedures, and utilize

1 existing procedures to implement the provisions of this act;
2 provided, such rules and procedures do not conflict with or impede
3 the provisions of this act.

4 SECTION 4. NEW LAW A new section of law not to be
5 codified in the Oklahoma Statutes reads as follows:

6 The Oklahoma Department of Emergency Management shall retain no
7 more than two percent (2%) of the funds appropriated by this act to
8 reimburse:

9 1. Costs incurred by the Oklahoma Department of Emergency
10 Management; or

11 2. Costs incurred on the agency's behalf,
12 associated with the administration of the appropriated funds and
13 programming required by the Oklahoma Department of Emergency
14 Management under the provisions of this act; provided, that no funds
15 shall be retained that would be disallowable under the provisions of
16 the American Rescue Plan Act of 2021.

17 SECTION 5. NEW LAW A new section of law not to be
18 codified in the Oklahoma Statutes reads as follows:

19 A. The Oklahoma Department of Emergency Management shall:

20 1. Submit to the Chairs of the Joint Committee on Pandemic
21 Relief Funding, or any successor Oklahoma House of Representatives
22 or Oklahoma State Senate legislative committee or joint committee,
23 as designated by the Speaker of the Oklahoma House of
24

1 Representatives and the President Pro Tempore of the Oklahoma State
2 Senate:

- 3 a. a written or electronic quarterly report detailing the
4 budgeting, expenditure, and management of all monies
5 appropriated in this act, and
- 6 b. a copy of all memorandums of understanding and
7 contracts with third parties entered into by the
8 Oklahoma Department of Emergency Management to
9 facilitate, assist, or administer powers and duties
10 provided to the Department under the provisions of
11 this act; and

12 2. At the Joint Committee on Pandemic Relief Funding's request,
13 appear before the Joint Committee no later than six (6) months after
14 the effective date of this act, and as otherwise requested by the
15 Joint Committee, to provide a status update regarding the
16 implementation of the provisions of this act.

17 B. The provisions of subsection A of this section shall remain
18 applicable for the period of time that monies appropriated under
19 this act are being budgeted, expended, or managed in the state. The
20 ending of such period shall be determined by the State Treasurer,
21 and shall be reported to the Governor, the Speaker of the Oklahoma
22 House of Representatives and the President Pro Tempore of the
23 Oklahoma State Senate.

1 SECTION 6. It being immediately necessary for the preservation
2 of the public peace, health or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

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